



CHAPTER xxxix.

An Act to confirm a Provisional Order under the Sea Fisheries Act 1868 relating to Mussel Fisheries in parts of the sea adjoining the counties of Carnarvon Merioneth and Cardigan. A.D. 1915.
[2nd July 1915.]

WHEREAS the Board of Agriculture and Fisheries have made the Provisional Order set forth in the schedule hereto under the provisions of the Sea Fisheries Act 1868: 31 & 32 Vict.
c. 45.

And whereas it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as amended and set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force. Order in
schedule
confirmed.

2. This Act may be cited as the Sea Fisheries (Cardigan Bay) Provisional Order Confirmation Act 1915. Short title.

A.D. 1915.

SCHEDULE.

CARDIGAN BAY MUSSEL FISHERY ORDER 1915.

*Order for the Improvement Maintenance and Regulation of a
Mussel Fishery in certain parts of the Sea adjoining the
Counties of Carnarvon Merioneth and Cardigan.*

PART I.

Limits of Fishery and Grantees of Order.

Limits of
fishery.

1. The limits of the Fishery to which this Order relates (herein-after called "the Fishery") are defined in the First Schedule to this Order and are delineated on a map sealed by the Board of Agriculture and Fisheries (herein-after called "the Board") and marked A 1444/15.

Grantees of
Order.

2. The grantees of this Order are the Lancashire and Western Local Fisheries Joint Committee who and whose successors are herein-after called "the Committee."

PART II.

Provisions applicable to Special Areas.

Definition of
"Special
Area."

3.—(1) The expression "Special Area" means any area of which the limits are set forth in the Second Schedule and any additional area within the Fishery which may be defined as a Special Area by notice under this Order.

(2) The Committee may by notice given with the approval of the Board after such advertisement and in such manner as the Board may direct define as a Special Area any area within the Fishery with a view to the application of Part II. of this Order to that area. The application of Part II. of this Order to any Special Area may be terminated by notice given by the Committee with the approval of the Board in such manner as the Board may direct.

Licences.

4. Save as herein-after provided no person shall dredge fish for or take mussels within any Special Area without a licence issued by the Committee. Licences shall be issued to any person applying for the same and paying the tolls herein-after provided. A licence shall be available only for the period specified therein and for use by the person named therein. A licence shall not authorise any person to dredge fish for or take mussels at any place in which he is not otherwise entitled to dredge fish for or take mussels or in contravention of any Act byelaw or regulation.

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Licences shall be in a form approved by the Board.

A.D. 1915.

Any person dredging fishing for or taking mussels within any Special Area shall when required by any officer appointed by the Committee produce his licence or shall desist from dredging fishing for or taking mussels until such licence is produced.

5.—(1) Save as herein-after provided there shall be paid to the Committee in respect of every licence for a fishing season and before it is issued a toll of five shillings irrespective of the date of the issue of the licence. Tolls payable on licences.

Where a licence has been lost or accidentally destroyed a new licence in substitution therefor shall on application by the licensee be issued to him on the payment to the Committee of a toll of one shilling.

(2) The Committee may from time to time revise the tolls leviable under this Order either by increasing or diminishing the amount thereof or by providing for licences available for a part only of a fishing season.

(3) Any such revision or variation shall be made and may be proved in evidence in the same manner and subject to the same rules as if such revision or variation were a regulation made under this Order.

6.—(1) For the purpose of allowing mussels taken from any Special Area and intended for consumption as human food to cleanse themselves and for the purpose of eliminating therefrom matter likely to be or to become dangerous to public health the Committee may from time to time provide or appoint suitable and convenient places or receptacles for the deposit of such mussels and public notice shall be given by the Committee in such manner as the Board shall direct of the establishment of any such place or places of deposit. Provision for cleansing mussels.

(2) From and after a date specified in a notice given by the Committee with the approval of the Board and in such manner as the Board shall direct mussels shall not be taken from any Special Area for sale or consumption as human food except for the purpose of being forthwith deposited by the person or persons so taking the same at a place or places or in a receptacle or receptacles provided or appointed by the Committee for the purpose aforesaid and in such manner as the Committee shall from time to time direct and if any person shall take mussels from any Special Area for sale or consumption as human food and fail to deposit them at a place or in a receptacle so provided or appointed and in the manner so directed he shall be deemed guilty of the offence of taking mussels in contravention of the regulations imposed by this Order.

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(3) Mussels so deposited as aforesaid at or in a provided or appointed place of deposit or receptacle shall not be taken therefrom until the expiration of such period as shall be from time to time prescribed by the Committee with the approval of the Board and no mussels intended for sale or consumption as human food shall be taken from a provided or appointed place of deposit or receptacle without a certificate issued by an officer of the Committee in such form as the Committee may prescribe.

(4) The Committee may with the approval of the Board provide or appoint special places of deposit or receptacles for the exclusive use of one or more licencees under this Order and may make such charges therefor as the Board may sanction.

PART III.

Provisions applicable to the Fishery generally.

Power to
make regu-
lations.

7. Subject to the provisions of this Article the Committee may for the improvement maintenance and regulation of the mussel fisheries in the Fishery from time to time make regulations to be observed within the whole or any specified part or parts of the Fishery and during the whole or any specified part or parts of the year for all or any of the following purposes:—

- (1) For determining the marks to be attached or affixed to or painted or otherwise placed on vessels or boats and the sails or gear of vessels or boats when used within the Fishery and not marked in pursuance of the Merchant Shipping Act 1894 or any Act amending the same or any regulation made thereunder and on dredges rakes or other instruments used for dredging fishing for or taking mussels within the Fishery:
- (2) For regulating generally the time and manner of dredging fishing for or taking mussels and for protecting mussels and mussel beds from injury:
- (3) For prohibiting the deposit on the Fishery of five-fingers otherwise starfish dogwhelks or other organisms deleterious to mussels and for requiring the destruction or regulating the disposal of such as may be taken up in fishing:
- (4) For revoking altering or varying any regulation made under this Order.

Regulations made under this Article shall not be of any effect until confirmed by the Board but when so confirmed they shall while they continue in operation have effect as and be deemed to be restrictions imposed or regulations made by this Order.

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Before a regulation is confirmed it shall be advertised by the Committee in such manner as the Board shall direct. A.D. 1915.

A copy of every regulation shall be furnished on application without charge to every person to whom a licence is issued under this Order.

Any regulation shall be revised from time to time when and as required by the Board and any regulation may at any time be cancelled by the Board and shall thereupon cease to have effect.

The production of a copy of any regulation purporting to be signed by a secretary or assistant secretary of the Board shall be conclusive evidence of the regulation and of the due making and confirmation thereof.

8. The foregoing provisions of this Order shall not apply to any officer of the Board or to any person dredging fishing for or taking mussels at any time by the written authority of the Committee under the hand of the clerk of the Committee and in accordance with the conditions contained in such authority for any scientific purpose or for stocking or breeding purposes or for bait. Exception of certain persons from Part II.

9.—(1) The Committee may from time to time appoint suspend or remove officers. Every such officer shall have the following powers (that is to say) he may within the Fishery enter any vessel or boat used for fishing therein he may examine the catches fishing implements and gear of any such vessel or boat he may seize mussels illegally taken within the Fishery and he may do all other lawful acts for giving effect to the provisions of this Order and of Part 3 of the Sea Fisheries Act 1868. Power to appoint officers.

For such purposes he shall be deemed to be a constable and shall have within the Fishery the same powers and privileges and be subject to the same liabilities as a constable duly appointed has and is subject to in his constablewick at Common Law or by Statute

(2) Where an officer has reasonable cause to suspect any person of having offended against any of the provisions of this Order or of any regulations made thereunder he may require such person to state correctly his christian name surname and place of abode.

Any person refusing or omitting when so required to state correctly his name and place of abode or wilfully continuing to offend after having been required by an officer to desist may be apprehended by an officer or by any person acting in the presence of and by order of an officer and conveyed before a justice of the peace to be dealt with according to law.

10. The whole of the moneys received by the Committee from tolls or otherwise under this Order shall be applied to the improvement maintenance and regulation of the Fishery under the powers of the Sea Fisheries Act 1868. Application of revenue.

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Accounts to
be rendered.

11. The Committee shall in every year render to the Board on or before such date as the Board may fix accounts of their income and expenditure under this Order and all other information required by the Board with reference to the Fishery in such form as the Board may from time to time require and shall allow the Board or any person appointed by them in that behalf to inspect the Fishery and all books accounts and other documents in the possession of the Committee relative to the Fishery and shall give to the Board or such person all such information relating thereto as they or he may require.

Saving of
power to
confer right
of several
fishery.

12. Nothing in this Order shall affect the power of the Board at any time to make an Order or Orders conferring a right or rights of several oyster mussel or cockle fishery within any portion of the Fishery and all the powers and provisions contained in this Order shall be subject to the powers of the Board to make such Order or Orders and to any alterations which may be made thereby or consequent thereon.

Crown
rights.

13. Nothing in this Order affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Committee to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Consent of
Board of
Trade to
works.

14. No buildings erections embankments or other works of a permanent nature required in connection with the working and carrying on of the Fishery under the provisions of this Order shall at any time be commenced or executed by the Committee within the Fishery without the previous sanction and consent in writing of the Board of Trade.

Erection of
works with
Board of
Trade con-
sent.

15. Nothing contained in this Order shall prevent any person from constructing putting up or erecting with the consent of the Board of Trade (without being liable unless so required by the terms of such consent to pay any compensation in respect thereof to the Committee or their licencees) any works or erections for coast protection or of public or local utility within or partly within the limits of the Fishery provided always that such works or erections are constructed put up or erected in accordance with such plans and sections and subject to such restrictions and regulations as previously to such works being commenced have been approved by the Board of Trade in

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writing under the hand of one of their secretaries or assistant A.D. 1915.
secretaries.

16. The Board of Trade Arbitrations &c. Act 1874 applies for the purposes of this Order as if this Order were an Act of Parliament. Application
of Act of
1874.

17. Subject to the provisions of section 45 of the Sea Fisheries Act 1868 and of section 2 of the Oyster and Mussel Fisheries Orders Confirmation Act 1869 (No. 2) this Order shall continue in operation until the expiration of sixty years from its confirmation by Act of Parliament and no longer. Duration
of Order.

18. The expression "fishing season" means that part of any period of twelve months commencing the first day of August during which the dredging fishing for or taking of mussels in the Fishery is not prohibited by Act byelaw or regulation. Definition.

19. This Order may be cited as the Cardigan Bay Mussel Fishery Order 1915. Short title.

Made by the Board of Agriculture and Fisheries under the Sea Fisheries Act 1868 and the Acts amending that Act this thirteenth day of April nineteen hundred and fifteen.

(L.S.) (Signed) HENRY G. MAURICE
 Assistant Secretary
 Board of Agriculture and Fisheries.

SCHEDULES TO ORDER.

FIRST SCHEDULE.

LIMITS OF FISHERY.

So much of the shore and bed of the sea and of the sea within which His Majesty's subjects have by International law the exclusive right of fishing as lies between a line drawn true south from the seaward extremity at high water of Pen-y-kil in the county of Carnarvon and a line drawn true north-west from the seaward extremity at high water of Cemmaes Head in the county of Pembroke with the adjoining coast and estuaries.

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SECOND SCHEDULE.

SPECIAL AREAS WITHIN THE LIMITS OF THE FISHERY.

Area 1.—That portion of the Fishery which lies within a line drawn true west from the north-western extremity of St. Margaret's School at Barmouth for a distance of half a nautical mile thence continued true south until it meets a line drawn true west from the southernmost corner of the Fairbourne Hotel at Fairbourne thence continued along such last-mentioned line until it reaches the said hotel.

Area 2.—That portion of the Fishery which lies within a line drawn true south from the westernmost corner of the Trefeddian Hotel at Aberdovey until it meets a line drawn true west from Ynys Las Railway Station thence continued along such last-mentioned line until it reaches the said station.

Area 3.—That portion of the Fishery which lies within a line drawn true south from the southern extremity at high water of Ynys Cyngar until it meets a line drawn true west from the south-west corner of Harlech Castle thence continued along such last-mentioned line until it reaches the said castle.

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